**BRENDAN NGEHSI NEWANFORBI**
Plaintiff In Pro Per
1455 Cat Tail Drive
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**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,**<br><br>Defendants. | **Case No.: _____**<br><br>**DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION** |

**DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF**

**MOTION FOR PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION**

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America as follows:

1. I am the Plaintiff in this action, appearing in propria persona. I have personal knowledge of the facts stated herein and, if called as a witness, could and would testify competently thereto.

2. On or about February 10, 2026, I filed a civil action against Katie Palacios and HOPE

Psychotherapy, Inc. ("HOPE") in the San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032 (the "State Action"), asserting seven causes of action arising from HOPE's blanket retention policy in its CDCR-contracted sex offender management program. The State Action was assigned to Department 10A, the Honorable George J. Abdallah presiding.

3. During the course of discovery in the State Action, Defendants' counsel, Blaze Van Dine of Sims, Lawrence & Broghammer, proposed a protective order as a precondition to producing documents responsive to Plaintiff's Requests for Production. The parties exchanged multiple drafts of the protective order and negotiated its terms in good faith over the course of approximately two weeks.

4. On or about June 17, 2026, the San Joaquin County Superior Court entered a Stipulated Protective Order that had been agreed to and signed by both Plaintiff and Defendants' counsel. A true and correct copy of the Stipulated Protective Order is attached hereto as **Exhibit A**. The State PO established categories of "Confidential" information, restricted disclosure to enumerated categories of recipients, and limited the use of Confidential Information to the State Action and the related federal action *Newanforbi v. Derrick et al.*, Case No. 2:26-cv-00004-DJC-JDP (E.D. Cal.) (the "EDCA Action").

5. Following entry of the State PO, Defendants produced 542 pages of documents in response to Plaintiff's Requests for Production. The production included, among other materials:

(a) HOPE's Clinical Operational Manual (September 2024 edition), a 349-page proprietary document containing HOPE's treatment protocols, graduation criteria, and internal clinical policies, including policies governing the discharge and completion of clients;

(b) HOPE's Maintenance Curriculum manual, describing treatment phases for clients who have "successfully completed" earlier phases of HOPE's program;

(c) The Clinical Director job description, which includes utilization targets and profit-sharing compensation, establishing a financial architecture tied to client retention;

(d) Collateral notes from HOPE clinicians concerning Plaintiff's treatment, including a February 2025 note revoking a previously granted accommodation without documented clinical justification;

(e) Email communications between HOPE clinicians and CDCR parole agents concerning Plaintiff's treatment status, including a March 31, 2026 email from Parole Agent Long Moua instructing HOPE to record a false no-show despite acknowledging a technological error caused Plaintiff's absence;

(f) A same-day collateral note from January 6, 2026, documenting that Defendant Katie Palacios, upon being served with the State Action complaint, immediately notified her supervisor Mark Delucchi, Dr. Carrie Shinske (Executive Director of Clinical Operations), and CEO Shannon Smith, followed by a forwarded email to CDCR contacts;

(g) The HOPE Program Employee Handbook (2023), which states that no one other than Shannon Smith, CEO, has authority to modify company policy;

(h) Philadelphia Indemnity Healthcare Professional Liability policy documents (Policy No. 067968), identifying Shannon Smith as the named insured with per-incident limits of $1 million and aggregate limits of $5 million; and

(i) Homework audit records, treatment completion packet materials, and proprietary clinical assessment tools.

All or substantially all of these materials were designated as "Confidential" by Defendants

under the State PO.

6. Section VIII of the State PO provides that within sixty (60) days after the conclusion of the State Action or the EDCA Action, whichever is later, each party to whom Confidential Information was produced shall return or destroy all such materials and provide written certification under oath. The State PO defines "conclusion" as thirty (30) days after the expiration of the time to appeal or challenge any final judgment.

7. On July 15, 2026, the San Joaquin County Superior Court sustained Defendants' demurrer to the First Amended Complaint. The State Action is now disposed. The return-or-destroy clock under Section VIII has begun running, and absent relief from this Court, I will be obligated to return or destroy 542 pages of discovery materials that are directly relevant to this action.

8. This action arises from substantially the same nucleus of operative fact as the State Action. Both actions challenge HOPE's blanket retention policy under which no parolee is determined to have completed sex offender treatment prior to discharge from parole, HOPE's false treatment-status reports to CDCR, and the retaliatory conduct directed at me for exercising my right to complain. The state-court discovery materials are essential to proving these claims.

9. By way of example, HOPE's Clinical Operational Manual contains the central documentary evidence in this case: on page 294, the Manual states that HOPE is "prohibited from discharging a client from treatment for any reason," while on page 295, the Manual describes a six-step graduation process culminating in a Treatment Completion Certificate that clinicians are "not permitted to provide directly to clients." This internal contradiction is the documentary confirmation of the fraud at the heart of this action.

10. The Clinical Director job description, the email communications between HOPE and

CDCR agents, the collateral notes, and the Employee Handbook are all essential to establishing Defendant Shannon Smith's personal knowledge and approval of the blanket retention policy, the financial incentive architecture underlying the policy, and the coordination between HOPE and CDCR in implementing the policy against me.

11. If I am forced to return or destroy these materials and then re-propound the identical discovery requests in this action, the result would be wasteful duplication of effort for all parties and the Court. Defendants would be required to re-collect, re-review, and re-produce the same documents. I would be required to re-draft and re-serve the same requests. The Court would be required to adjudicate any disputes over the same production. This duplication serves no legitimate purpose because the Proposed Protective Order provides equivalent or greater protections than the State PO.

12. I have not attached any state-court discovery documents as exhibits to the Complaint filed in this action. I have not disclosed the contents of any documents designated as Confidential under the State PO to any person not authorized to receive them. In the Complaint, I have referenced only facts -- not documents -- in setting forth the factual allegations. I file this Motion contemporaneously with the Complaint to put the issue before the Court at the outset and to seek authorization before using or relying on any Confidential materials in this action.

13. As of the date of this Declaration, Defendants have not been served with the Complaint in this action and have not appeared. Pre-filing conferral with Defendants' counsel regarding this Motion was therefore not practicable. I will promptly provide Defendants with a copy of this Motion upon service of the Complaint and will meet and confer with Defendants' counsel regarding any modifications to the Proposed Protective Order.

14. Attached hereto and incorporated by reference are the following exhibits:

**Exhibit A:** True and correct copy of the Stipulated Protective Order entered in *Newanforbi v. Palacios et al.*, San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032, signed on or about June 17, 2026.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 16, 2026, at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

# EXHIBIT A

Stipulated Protective Order Re: Confidential Information
Newanforbi v. Palacios et al.
San Joaquin County Superior Court
Case No. STK-CV-UF-2026-0001032

Entered June 23, 2026

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Attorneys for Defendant
KATIE PALACIOS and HOPE PROGRAM

Filed JUN 23 2026
STEPHANIE BOHRER, CLERK
By DJeardeben DEPUTY

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,

Defendants.

Case No.: STK-CV-UF-2026-0001032

**~~[PROPOSED]~~ STIPULATED PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION**

Complaint Filed: February 10, 2026
Trial Date: TBD

JUN 17 2026

**WHEREAS** the parties in this case ("Litigation") have entered into a Stipulation agreeing to the terms of this Protective Order re: Confidential Information ("Protective Order"), and good cause appearing therefore, the court **HEREBY ORDERS AS FOLLOWS:**

## I. SCOPE OF PROTECTIVE ORDER

A. The protection of this Protective Order may be used with respect to any documents, testimony, information, and things (collectively "materials") produced or created in this Litigation that contain Confidential Information. As used herein, the term "Confidential Information" includes testimony and records, including but not limited to discovery responses, whether hardcopy or



FILE BY FAX

electronic, that contain confidential and/or proprietary trade secret information, including, but not limited to, counseling matters, information pertaining to sexual matters, information pertaining to psychological or medical matters, information pertaining to education, training, and selection of employees and staff, information pertaining to individual personnel files of employees and staff policies, training protocols, and clinical practice guidelines, information pertaining to non-parties subject to protection under the California Constitution or the United States Constitution, and such other information protected by California's constitution and common law right to privacy. As set forth below, materials containing Confidential Information may be designated as "Confidential." Such designation may be made by any Party or non-party producing materials in the Litigation ("Producing Party"), or may be made by a Party who determines, in good faith, that materials produced by a non-party contain Confidential Information ("Designating Party") even though not so designated by the Producing Party.

B. In the event that additional Parties join or are joined in this litigation, they shall not have access to materials designated as "Confidential" pursuant to this Protective Order until they have executed and, at the request of any Party, filed with the Court their agreement to be bound by this Protective Order, which has been attached as Exhibit "1" hereto.

## II. DESIGNATION OR MATERIALS AS CONFIDENTIAL

A. "Confidential" materials shall include only such information as the Producing or Designating Party in good faith contends should be protected pursuant to this Protective Order on the grounds that the information is properly subject to protection under existing California or federal law.

B. In making the designation of materials pursuant to this Protective Order, the Producing or Designating Party shall give due consideration to whether the information contained in the materials (1) has been produced, disclosed or made available to the public in the past, (2) has been published, communicated or disseminated to others not obligated to maintain the confidentiality of the information contained therein, (3) has not been preserved or maintained in a manner calculated to preserve its confidentiality, or (4) is available from a third party or commercial source that is not obligated to maintain its confidentiality or privacy.

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C. The protection of this Protective Order may be invoked with respect to materials in the following manner:

1. Documents when produced or otherwise designated shall bear the clear and legible designation "Confidential" on each page of the document. Documents produced prior to the entry of this Protective Order may be designated as "Confidential" within thirty (30) days after entry, and documents produced by non-parties may be designated "Confidential" by a Party within thirty (30) days after such production;

2. As to discovery requests or the responses thereto, the pages of such requests or responses containing "Confidential" materials shall be so marked;

3. As to deposition testimony, "Confidential" treatment may be invoked by: (1) declaring the same on the record at the deposition with instructions to so designate the cover of the deposition transcript, or (2) designating specific pages as "Confidential" and serving such designations within thirty (30) days of receipt of the transcript of the deposition in which the designations are made. All deposition testimony shall be treated as "Confidential" pending receipt of a transcript of the deposition.

D. If any Producing Party inadvertently produces or discloses any Confidential Information without marking it with an appropriate legend, the Producing Party or a Designating Party shall promptly notify the receiving party that the information should be treated in accordance with the terms of this Protective Order and shall forward appropriately stamped copies of the items in question. Within five (5) days of the receipt of substitute copies, the receiving party shall return the previously unmarked items and all copies thereof. The inadvertent disclosure shall not be deemed a waiver or confidentiality, and such designation shall be made as soon as possible after the discovery of the inadvertent production or disclosure.

## III. CHALLENGES TO "CONFIDENTIAL" DESIGNATION

A. Any Party believing materials designated as "Confidential" by another is not entitled to such designation shall notify the Producing or Designating Party of that belief in writing, provide a

brief statement of the basis for that belief with service on all other Parties, and allowing ten (10) days for the Producing or Designating Party to respond.

B. If a Producing or Designating Party does not modify its designation of the materials in response to a notice pursuant to paragraph III.A. of this Protective Order, then the Party challenging the "Confidential" designation may move the court for an order modifying or removing such designation. To maintain "Confidential" status, the burden shall be on the proponent of confidentiality to show that the material or information is entitled to protection under applicable law. Unless and until a "Confidential" designation is voluntarily withdrawn by the Producing or Designating party, or the court issues an order modifying or removing such designation, the provisions of the Protective Order shall continue to apply. Such a motion to remove the "Confidential" designation shall be madeat any time before trial, provided that the challenging Party has first engaged in a good-faith meet-and-confer with the Designating Party regarding the disputed designation(s).

## IV. DISCLOSURE OF MATERIALS DESIGNATED AS "CONFIDENTIAL"

A. Materials designated "Confidential," as well as summaries, excerpts and extracts thereof, shall not be disclosed to or made accessible to any person except as specifically permitted by this Protective Order. Materials designated "Confidential" shall be used solely in the preparation for trial and/or trial of the Litigation and shall not be used at any time for any other purpose. Notwithstanding the foregoing, materials designated as "Confidential" may also be used in the action *Newanforbi v. Derrick et al.*, United States District Court, Eastern District of California, Case No. 2:26-cv-00004 DJC JDP PS, subject to compliance with the Protective Order in that action.

B. Materials designated as "Confidential" may be disclosed only to:

1. The court, its clerks and research attorneys;

2. Attorneys actively involved in the representation of a Party, their secretaries, paralegals, legal assistants, and other staff actively involved in assisting in the Litigation;

3. In-house attorneys employed by any Party and working on the Litigation, and their secretaries, paralegals, legal assistants, and other staff actively involved in assisting in

the Litigation;

4. The Parties, officers and employees of the Parties assisting counsel in the preparation of the case for trial, motion practice or appellate proceedings, provided that the materials designated "Confidential" may be disclosed to such persons only to the extent such disclosure is, in the judgment of counsel, reasonably necessary to counsel's preparation of the case;

5. The insurance carriers for defendants and their counsel, who provide coverage or potential coverage for claims in this Litigation;

6. Any expert or consultant who is retained by any of the Parties or their counsel of record to assist counsel in the Litigation, and any employee of such an expert assisting in the Litigation (hereafter, "Experts");

7. Any person called to testify as a witness either at a deposition or court proceeding in the Litigation, but only to the extent necessary for the purpose of assisting in the preparation or examination of the witness, and also only if such persons are informed of the terms of this Protective Order, provided with a copy of the Protective Order on the record and are informed that they are required not to disclose information contained in the materials designated as "Confidential." Witnesses shown Confidential Information are not allowed to retain copies;

8. Deposition and court reporters and their support personnel, for purposes of preparing transcripts;

9. Employees of outside copying services and other vendors retained by counsel to assist in the copying, imaging, handling or computerization of documents, but only to the extent necessary to provide such services in connection with the Litigation and only after being informed of the provisions of this Protective Order and agreeing to abide by its terms;

10. Mediators or other Alternative Dispute Resolution neutrals (including their employees, agents and contractors) to whom disclosure is reasonably necessary to their involvement in the Litigation; and

11. Any person who created a document or was the recipient thereof.

C. Confidential Information may not be disclosed to, or discussed with, any person or entity not specifically outlined in 1-11. above, including, but not limited to the media or on social media, including with newspapers, television, radio stations or any person in any way associated with such media outlets.

D. Each person to whom Confidential Information is disclosed (other than persons described in paragraphs IV(B)(1), (7), and (8)) shall execute a non-disclosure agreement in the form attached hereto as Exhibit "2" prior to their receipt of the Confidential Information, and shall agree to be bound by this Protective Order and to be subject to the jurisdiction of this court for the purposes of enforcement. Counsel disclosing Confidential Information to persons required to execute non-disclosure agreements shall retain all such executed agreements. Copies of the executed agreements shall be preserved by counsel and shall be provided to the opposing party if the court so orders upon a showing of good cause.

## V. USE IN COURT PROCEEDINGS – FILING OF COURT PAPERS

A. Nothing contained in this Protective Order shall be construed to prejudice any Party's right to use at trial or in any hearing before the court any Confidential Information, provided that reasonable notice of the intended use of such material shall be given to all counsel of record, in order to enable the parties to arrange for appropriate safeguards, and provided that the rules applicable to sealing records, as further addressed below, are followed. Likewise, nothing in this Protective Order shall be dispositive of any issues of relevance, discoverability or admissibility.

B. The submission of any materials designated as "Confidential" pursuant to this Protective Order to the court in the Litigation must comply with California Rules of Court ("C.R.C.") 2.550, 2.551 and 8.46 to the extent applicable. If the materials are required to be kept confidential by law or are submitted in connection with discovery motions or proceedings, no court order is required. (C.R.C. 2.550(a)(2) and (3).) If materials designated as "Confidential" are sought to be filed in support of a discovery motion, filing, or pleading with the Court that is not subject to C.R.C. 2.551 (as provided by C.R.C. 2.550(a)(2), (3)), those materials shall be lodged with the Court and served on all

appropriate parties who have agreed to the terms of this Protective Order in a sealed envelope with a caption page on the exterior of the envelope providing notice of lodgment of Confidential Information in support of that pleading, and providing: "CONFIDENTIAL MATERIALS LODGED IN SUPPORT OF MOTION UNDER C.R.C. 2.550(a)(3) – NO FURTHER ORDER REQUIRED." The reverse side of the envelope containing the Confidential Information shall have the instant Protective Order attached thereto.

However, if the materials are submitted for use at trial or as the basis for adjudication or matters other than discovery motions or proceedings, a court order sealing the materials is required and may only be obtained by careful compliance with the procedures set forth in C.R.C. 2.551. If either Party seeks to file Confidential Information or disclose the contents of Confidential Information designated as such by the opposing Party as a basis for adjudication other than discovery motions or proceedings (*e.g.*, motions within the scope of C.R.C. 3.1350 and 3.764), the filing Party must meet and confer with the designating Party at least 10 (ten) calendar days prior to the intended filing date to offer designating Party the opportunity to evaluate whether the designated materials fall within the parameters of C.R.C. 2.550(d), and to either (a) remove the Confidential designation, or (b) prepare a motion or application pursuant to C.R. C. 2.551 (b). The Parties understand that failure to comply with the procedural requirements of C.R.C. 2.551 or failure to present evidence sufficient to support the findings set forth in C.R.C. 2.550(d) may result in the placement of confidential materials in the public file. The Parties further understand that no sealing order will be issued solely on the basis of the existence and applicability of this Protective Order. (C. R.C. 2.551(a).)

## VI. USE OF CONFIDENTIAL INFORMATION

All Confidential Information (other than Information that is publicly available) must be used by the party or parties to whom the Confidential Information is produced solely for the purpose of this Litigation and may not be used for any other purpose whatsoever, other than use in the related action *Newanforbi v. Derrick et al.*, United States District Court, Eastern District of California, Case No. 2:26-cv-00004 DJC JDP PS.

## VII. MODIFICATION

Nothing in this Protective Order shall preclude any Party from applying to the Court to modify this Protective Order to provide for additional safeguards to ensure the confidentiality of materials produced in this action or otherwise modify this Protective Order for good cause shown.

## VIII. DISPOSITION OF MATERIALS AT CONCLUSION OF CASE

The conclusion of an action is defined as thirty (30) days after the expiration of the time to appeal or challenge any final judgment, settlement, or consent decree. All provisions of this Order restricting the communication or use of Confidential Information continue to be binding after the conclusion of this action, unless otherwise agreed or ordered. All materials designated as "Confidential" shall remain in the possession of the counsel of record of the Party to whom such materials are produced, and they shall not permit any such materials to leave their possession, except that copies of such materials may be made for the use of persons to whom disclosure may be made under paragraph IV.B. of this Protective Order, or for the purpose of submission to the court under paragraph V of this Protective Order. Within sixty (60) days after the conclusion of this Litigation or the action *Newanforbi v. Derrick et al.*, United States District Court, Eastern District of California, Case No. 2:26-cv-00004 DJC JDP PS, whichever is later, including the expiration or exhaustion of all rights to appeal, each Party to whom Confidential Information was produced shall, at the election of the Producing Party, (a) return all documents and copies containing Confidential Information (including, but not limited to, copies in the possession or control of any expert or employee) to the Producing Party, or (b) promptly destroy all such materials and copies and provide a written certification under oath to the Producing Party and to any Designating Party to that effect.

## IX. RETENTION OF JURISDICTION

The court shall retain jurisdiction over all persons to be bound by the terms of this Protective Order, during the pendency of this Litigation and for such time thereafter as is needed to carry out its terms.

## X. REGULATORY REPORTING AND GOOD-FAITH COMPLAINTS

Nothing in this Order shall prohibit any Party from disclosing Confidential Information to any governmental agency, regulatory body, or professional licensing board with jurisdiction over the

conduct, practices, or licensing of any party or non-party in this action within 90 days of the termination of this action, to the extent such disclosure is (a) required by law or regulation, or (b) made in furtherance of a good-faith complaint, report, or request for investigation. Such disclosures shall be accompanied by a request that the receiving agency maintain the confidentiality of the materials to the extent permitted by law.

The Stipulation and Protective Order may be executed in counterparts.

**IT IS SO STIPULATED, THROUGH COUNSEL OF RECORD.**

Dated: June 14, 2026

SIMS, LAWRENCE & BROGHAMMER

By: _____
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

Dated:

By: /s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

PURSUANT TO STIPULATION, IT IS SO ORDERED:

DATED: June 23, 2026

_____
Judge of the Superior Court

GEORGE J. ABDALLAH, JR.

# PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

**[PROPOSED] STIPULATED PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION**

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

***SEE ATTACHED SERVICE LIST***

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: June 17, 2026

Kim Schmitt

## SERVICE LIST

| | |
|---|---|
| Brendan Ngehsi Newanforbi<br>Plaintiff, in Pro Per<br>1455 Cat Tail Drive<br>Stockton, CA 95204<br>(209) 801-4442<br>E: bnn.cdl@gmail.com | **PLAINTIFF, IN PER** |